

23AHCV00997 23AHCV00997

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-17

Motion: PLAINTIFFS' MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

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Case Number: 23AHCV00997 Hearing Date: August 17, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

Y.L., et
al.,

Plaintiff(s),

vs.

HRC
FERTILITY, et al.,

Defendant(s).

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CASE NO.: 23AHCV00997

[TENTATIVE]

ORDER RE: PLAINTIFFS' MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL
INTERROGATORIES, SET ONE

Dept.

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8:30

a.m.

August 17,

2026

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I.

INTRODUCTION

Plaintiffs Y.L. and W.Q. (collectively,

"Plaintiffs") move for an order compelling further responses from defendant

Angels Creation Reproductive Center, Inc. ("ACRC") to Special Interrogatories,

Set Two, Nos. 6 and 11 as well as Requests for Production, Set Three, Nos. 31-35,

40. These discovery requests seek information about the egg donor selected by

Plaintiffs, identified anonymously as AD1121 or A.Z. Plaintiffs demand ACRC

provide information such as the WeChat identifier for AD1121 and the date when

AD1121's profile was removed from ACRC's website.

II.

LEGAL

STANDARD

On a motion to compel further responses, the objecting party has the burden of justifying its objections and showing why a further response is not needed. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221; Williams v. Superior Court (2017) 3 Cal.5th 531, 541 [responding party has burden of justifying any objection and failure to respond].) When moving to compel further responses to inspection demands, however, the propounding party must first "set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) If the responding party objects to the production of electronically stored information ("ESI") on the basis that the information is from a source that is not reasonably accessible because of the undue burden or expense, the party bears the burden of demonstrating so. (Id., subd. (d).)

III.

DISCUSSION

Special Interrogatory No. 6 (WeChat ID of AD1121): GRANTED. ACRC states that it can no longer obtain the WeChat ID of AD1121 because the communications with AD1121 took place in 2022 with Jingyu Zang through a personal cell phone and a business phone line; the cell phone is no longer available and the business phone line was not maintained after Ms. Zang left the employ of ACRC. ACRC states that WeChat IDs are associated with different phone numbers and data are stored locally on the phone, not on a cloud server.

Plaintiffs aptly points out that it is unreasonable for a business to keep donor information on a single person's personal cellphone as the "exclusive repository of all donor contact data." Plaintiffs also state that ACRC could inquire about AD1121's information through other sources and contend that ACRC has failed to show that it has done so.

In opposition, ACRC argues that it

already answered the special interrogatory and stated why it could not provide the information requested. ACRC contends that its response already states that a diligent search and reasonable inquiry was made and that no more is required. ACRC claims that any inquiry to other entities or individuals, or questions regarding the existence of a central database of donor information are subjects of other interrogatories and irrelevant to the merits of this motion. The Court disagrees. If a propounding party finds the responding party's responses evasive or incomplete, it may move to compel a further response. The responding party's burden is to explain to the Court why a further response should not, or cannot, be compelled. Requiring Plaintiffs to propound additional discoveries to uncover any evasiveness by ACRC would encourage piecemeal responses and gamesmanship in the discovery process, not eliminate it.

Here, ACRC produced no evidence regarding the steps it took to make a reasonable and diligent inquiry to find the information about AD1121's WeChat identifier. Accordingly, the motion to compel a further response is GRANTED and ACRC is ordered to expound on its inability to provide information about AD1121's WeChat identifier.

Special Interrogatory No. 11 (date when AD1121's donor profile was removed from ACRC's website): ACRC stated that the profile was removed in 2022 but does not know the specific date because it used a different webhosting platform, Strikingly, in 2022 before changing the platform it used to Wix in mid-2023. ACRC states it no longer has access to data indicating when certain information was added to or removed from its website before mid-2023.

Plaintiffs argue that a change in the webhosting platform does not prevent ACRC from accessing the information requested because accounts remain accessible unless affirmatively deleted and archived data can be retrieved or exported on request. Plaintiff argues that a further response should explain whether any website backup, export file, or archive copy was created at the time of the migration, whether the Strikingly account remains accessible and if not, when and by whom it was deactivated, as well as the identity of the individuals who removed or modified the donor profile and the dates of such removal or modification.

ACRC provides no evidence in support of its claim, such as a sworn declaration from a corporate representative, that the information sought by Plaintiffs is no longer accessible. ACRC only repeats

its argument that questions regarding the adequacy of its inquiry are topics for other special interrogatories. As stated above with respect to Special Interrogatory No. 6, this argument fails to satisfy ACRC's burden to show why no further response can be provided. Therefore, the motion to compel a further response is GRANTED.

Request for Production No. 31 (Copy of the Donor Profile for AD1121): DENIED. Plaintiffs' complaint is not with the further response, but with ACRC's failure to produce the documents as agreed-upon. In any event, the profile has since been produced.

Request for Production No. 32 (all documents indicating the date when AD1121's donor profile was removed from ACRC's website): For the same reasons as those stated above in Special Interrogatory No. 11, the motion to compel a further response to Request for Production No. 32 is GRANTED.

Request for Production No. 33 (documents indicating Communications with AD1121 that she no longer wanted to be an egg donor): GRANTED. ACRC claims it adequately explained why WeChat communications are no longer available, but this specific request is not limited to WeChat communications. Rather, the request demands documents "indicating" any communications with AD1121 that she no longer wanted to be an egg donor.

Request for Production Nos. 34-35 (WeChat communications between ACRC and AD1121 in 2022, including communications confirming her agreement to be a donor in early 2022): GRANTED. ACRC claims the response provided fully explains why ACRC cannot produce the WeChat communications, but ACRC provides no evidence that a diligent search and reasonable inquiry was conducted. ACRC does not state how or when the personal cell phone was disposed of, whether a backup copy of Zang's phone exists, whether copies of the WeChat communications exist in other forms, such as screenshots and text messages, or whether any chat history was affirmatively stored or migrated elsewhere, even if it was not "automatically" stored on WeChat's servers.

IV.

CONCLUSION

In conclusion, Plaintiffs' motion is

GRANTED in part. The Court observes that Plaintiffs improperly combined two motions into one. Accordingly, the following order is conditioned on Plaintiffs' payment of an additional filing fee to the Court and filing proof of payment with the Court:

Within 20 days of Plaintiffs' filing

proof that the filing fee has been paid, ACRC is ordered to serve further responses to Special Interrogatories – Set Two, Nos. 6 and 11 and Request for Production of Documents – Set Three, Nos. 31, and 33 through 35.

No sanctions are imposed because the

notice of motion does not include a request for sanctions or identify the persons to be sanctioned. Also, Plaintiffs do not substantiate their request for sanctions with a declaration.

Plaintiffs to

give notice.

Dated

this 17th

day of August 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.